

25NNCV05080 25NNCV05080

County: los-angeles

Division: Civil Law and Motion

Department: V

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Case Number: 25NNCV05080 Hearing Date: September 1, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

JOHN M.G. DOE, a minor by and

through his guardian ad litem, ARTUR GAZARYAN,

Plaintiffs,

vs.

CENTER 4 AUTISM & RELATED

SERVICES (C.A.R.S), UNITED CHILDREN'S LEARNING ACADEMY, LLC., DANIEL CHAIRES,

and DOES 1 TO 100, INCLUSIVE,

Defendants.

Case

No.:

25NNCV05080

Hearing

Date:

September
1, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION FOR LEAVE TO AMEND COMPLAINT

MOVING PARTY: Plaintiff John M.G. Doe

RESPONDING PARTIES:

Defendants New Horizons for Children,
LLC dba Center for Autism and Related Services and United Children's Learning
Academy, LLC

The Court

considered the moving papers, opposition, and reply filed in connection with the
instant motion.

BACKGROUND

On July 22, 2025,
Plaintiff John M.G. Doe, a minor by and through his guardian ad litem, Artur
Gazaryan ("Plaintiff") brought this action against Defendants New Horizons for
Children, LLC dba Center for Autism & Related Services, United Children's
Learning Academy, LLC (collectively, "Defendants"), Daniel
Chaires ("Chaires"), alleging causes of action for (1) negligence/negligent
hiring, supervision, training, and retention, (2) assault, and (3) battery. Plaintiff,
a nonverbal minor at the time of the allegations, alleges that, while under
Defendants' care, he was subjected to physical abuse, physical assault, and
mistreatment by Chaires while receiving in-home services.

On October 7, 2025, Defendants filed their
answer to Plaintiff's complaint.

On February 24, 2026, the Court entered
default in favor of Plaintiff against Chaires.

On August 6, 2026,
Plaintiff filed the instant motion for leave to amend the complaint.

On August 19, 2026,
Defendants filed an opposition.

On August 25, 2026,
Plaintiff filed a reply.

LEGAL STANDARD

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a)(1).)

“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

DISCUSSION

Plaintiff moves for an order granting leave to file a first amended complaint. Plaintiff makes this motion on the grounds that, since the filing of the original complaint, Defendants put forward a defense that Chaires acted outside the scope of his employment. Plaintiff seeks to amend the complaint to address that Chaires acted as an employee and that Defendants are vicariously liable under a respondeat superior theory.

In opposition, Defendants argue the amended pleading is inconsistent with the original complaint and implicates the sham pleading doctrine. (Opp., 2:7-24.) Defendants contend that the proposed first amended complaint presents a new cause of action combining several

different concepts, negligence, vicarious liability, and independent contractor liability, which are internally inconsistent. (Opp., 3:1-7.)

In reply, Plaintiff argues there is no prejudice to Defendant, because the proposed first amended complaint clarifies an existing cause of action. (Reply, 3:2-7, 21-24.) Plaintiff argues the amendment does not contain inconsistent factual allegations to implicate the sham pleading doctrine, and Plaintiff adequately explained that amendment is necessary to fully address that Chaires acted within the scope of his employment. (Reply, 4:19-28, 5:1-14.)

California courts adhere to a policy of great liberality in allowing amendments at any stage of a proceeding so that cases may be disposed of on their substantial merits. (Board of Trustees v. Superior Court (2007) 149 Cal.App.4th 1154, 1163.) “Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.” (Ibid.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) However, a trial court can properly deny leave to amend if adding a new cause of action would change “the tenor and complexity of the complaint from its original focus.” (Magpali v. Farmers Group (1996) 48 Cal.App.4th 471, 487.)

“Under the sham pleading doctrine, a pleader cannot circumvent prior admissions by the easy device of amending a pleading without explanation.” (Womack v. Lovell (2015) 237 Cal.App.4th 772, 787.) If a pleading party alleges inconsistent facts in a subsequent pleadings, a court may disregard the inconsistent allegations. (Larson v. UHS of Rancho Springs, Inc. (2014) 230 Cal.App.4th 336, 343-344; Deveny v. Entropin, Inc. (2006) 139 Cal.App.4th 408, 425; Vallejo Development Co. v. Beck Development Co. (1994) 24 Cal.App.4th 929, 946.)

After reviewing Plaintiff's proposed first amended complaint, the Court does not find that it implicates the sham pleading doctrine. The proposed amendment adds a fourth cause of action for negligence under a theory of vicarious liability, but this new cause of action is not materially inconsistent with the first cause of action for negligence and negligent hiring, supervision, training, and retention. (See Gezalian

Decl., ¶ 2, Exh. A.) While Defendants argue Plaintiff combines several inconsistent theories of liability, the Court notes that the original complaint never alleged that Chaires was an independent contractor or acted outside of his scope of employment. The original complaint states that Chaires was an employee of Defendants. (Compl., ¶ 7.) Therefore, the Court does not find inconsistent factual allegations to implicate the sham pleading doctrine.

Likewise, the Court does not find that Defendants would be prejudiced if leave to amend is granted. While the parties completed a first set of written and oral discovery, the Court entered default against Chaires and no trial date is set in this matter. (Gezalian Decl., ¶¶ 3-4.) Plaintiff sent Defendants a redlined version of the proposed first amended complaint before bringing this motion, providing Defendants with notice. (Gezalian Decl., ¶ 5.) The proposed first amended complaint removes Defendant United Children's Learning Academy, LLC and the Doe defendants, and the amendment merely clarifies factual allegations regarding Chaires employment without adding new, substantial allegations. (See Gezalian Decl., ¶ 2, Exh. A.).

Accordingly, the Court grants Plaintiff's motion for leave to amend.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff John M.G. Doe's motion for leave to amend complaint.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 1, 2026

Sarah
J. Heidel

Judge
of the Superior Court